

# STATE OF NEW YORK

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10866--B

## IN ASSEMBLY

April 8, 2026

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Introduced by M. of A. PHEFFER AMATO -- read once and referred to the Committee on Cities -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee

AN ACT in relation to authorizing the city of New York to discontinue certain parkland in the borough of Queens

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subject to the provisions of this act, but notwithstanding  
2 any provision of law to the contrary, the city of New York is hereby  
3 authorized, upon such terms and conditions as the city shall determine,  
4 to discontinue the use as parklands and alienate the lands described in  
5 section three of this act and to transfer such land to the metropolitan  
6 transportation authority for the purpose of enabling the New York city  
7 transit authority to construct a new permanent at-grade and subsurface  
8 signal tower facility and track crossover.

9 § 1-a. Notwithstanding the failure of the city of New York to seek and  
10 receive state legislative authorization to alienate certain parklands as  
11 described in section three of this act prior to the parklands being  
12 alienated and transferred to the metropolitan transportation authority  
13 such alienation is hereby validated, legalized, ratified and confirmed.

14 § 2. The authorization provided in section one of this act shall be  
15 effective only upon the condition that the city of New York dedicates an  
16 amount equal to or greater than the fair market value of the parklands  
17 being discontinued towards the acquisition of new parklands and/or capi-  
18 tal improvements to existing parklands and recreational facilities with-  
19 in the borough of Queens.

20 § 3. The lands hereby authorized by section one of this act to be  
21 discontinued as parkland and transferred to the metropolitan transporta-  
22 tion authority are located in the county of Queens, city and state of  
23 New York, and are bounded and described as follows:

24 ACQUISITION OF PROPERTY RIGHTS WITHIN TAX LOT 10 IN BLOCK 16160, WITH  
25 ADDRESS OF 3-11 BEACH 104 STREET, BOROUGH OF QUEENS:

EXPLANATION--Matter in italics (underscored) is new; matter in brackets  
[-] is old law to be omitted.

LBD15370-04-6

1 BEGINNING AT THE POINT OF COMMENCEMENT, (N=152034319, E=1032672.026)  
2 (NAO 83 (2011), NEW YORK LONG ISLAND ZONE NUMBER (3104) WITNESSED BY A  
3 CROSS CUT IN THE CONCRETE, WHICH IS AT THE INTERSECTION OF WESTERLY  
4 RIGHT OF WAY LINE OF BEACH 104TH STREET, A FIFTY FEET WIDTH RIGHT OF  
5 WAY, AND NORTHERLY RIGHT OF WAY LINE OF ROCKAWAY FREEWAY, A FIFTY FEET  
6 WIDTH RIGHT OF WAY, RUNNING THENCE;

7 AT A DISTANCE OF 190.20 FEET AND BEARING ANGLE OF S=69°-40'-23" W TO A  
8 POINT LOCATED ON THE NORTHERLY RIGHT OF WAY LINE OF ROCKAWAY FREEWAY  
9 (N=151968.247, E 1032493.671), THENCE;

10 A DISTANCE OF 5.00 FEET AND ANGLE OF N=22'-11'-20" W, TO A POINT  
11 LOCATED ON THE BORDER OF BLOCK 16160 AND BLOCK 16161 (N=151972.879,  
12 E=1032491.781), THENCE;

13 A DISTANCE OF 190.20 FEET AND ANGLE OF N=69°-40'-23" E, PARALLEL WITH  
14 ROCKAWAY FREEWAY RIGHT OF WAY, TO A POINT ON THE WESTERLY RIGHT OF WAY  
15 LINE OF BEACH 104TH STREET (N=152038.951, E=1032670.137), THENCE;

16 A DISTANCE OF 5.00 FEET AND ANGLE OF S=22°-11'-20" E, TO THE POINT OF  
17 COMMENCEMENT, AND CONTAINING WITHIN SAID BOUNDS 951 SQ. FT. OR 0.022  
18 ACRES, MORE OR LESS.

19 § 4. In the event that the city of New York received any funding,  
20 support or assistance from the federal government for the purchase,  
21 maintenance or improvement of the parklands set forth in section three  
22 of this act, the discontinuance and alienation of such parkland author-  
23 ized by the provisions of this act shall not occur until the city of New  
24 York has complied with any federal requirements pertaining to the alien-  
25 ation or conversion of such parklands, including satisfying the secre-  
26 tary of the interior that the alienation or conversion complies with all  
27 conditions which the secretary of the interior deems necessary to assure  
28 the substitution of other lands shall be equivalent in fair market value  
29 and usefulness to the lands being alienated or converted.

30 § 5. This act shall take effect immediately.